

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SPAIN

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Spain, grounded in the environmental-assessment, planning, and administrative-court system and documented campaigns

This guide uses the Spanish legal terms you will actually encounter (the EIA and its DIA, the autonomous communities, the recurso contencioso-administrativo, the Aarhus rights in Law 27/2006, and so on), each defined on first use and in the Glossary. It describes the national framework; the seventeen autonomous communities and the municipalities each have their own roles — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end** of this guide.

A note on money. Budgets in this guide are in euros (EUR). Every figure is indicative — Spanish community campaigns range from near-zero (volunteer-run, pro-bono experts, free public data) to well-funded coalitions that commission independent studies. Treat the ranges as a menu, not a bill.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Spain. Projects backed by developers and waved through by a town hall still fall when opposition is organised, documented, and legally sharp — because Spain's system has two features communities can use: a mandatory **environmental impact assessment (EIA)** — *evaluación de impacto ambiental* — with a compulsory public-information period for large projects, and an unusually open door to the courts for environmental cases.

Spain grants environmental associations that meet certain criteria something most countries do not: a form of **actio popularis** — the standing to take an environmental decision to court even without showing a direct personal injury. This right flows from the **Aarhus Convention** (ratified by Spain) and its implementing statute, **Law 27/2006** of 18 July, on access to information, public participation and access to justice in environmental matters. It means a properly constituted local association can challenge an approval in the **contencioso-administrativo** (administrative) courts on both procedural and substantive grounds. This matters in practice: the paperwork you file during the public-information period becomes the record a court later reviews.

At the same time, be clear-eyed. The pressure in the system usually leans toward "yes." Developments bring investment, jobs, and tax and fee revenue to municipalities; renewable-energy build-out has been politically fast-tracked; a wave of reforms has narrowed or sped up environmental review for wind and solar in particular. Rural communities across Spain — Aragón, Castilla y León, Extremadura, Galicia, Andalucía — have organised against solar and wind megaprojects, quarries, macro-farms (*macrogranjas*), and infrastructure they say were approved with thin assessment and little consultation. The tools below are how communities have pushed back anyway, and sometimes won.

What "winning" realistically means. Only a minority of destructive projects are stopped outright, and usually not by one lever. But "stopped outright" is not the only win. A campaign can force a negative or heavily conditioned **DIA**; delay a project for years until its economics collapse; win a court annulment that sends it back to the drawing board; shrink it or move it away from the most sensitive ground; or so raise the political cost that the developer or the region quietly drops it. Each of those has happened in Spain. The realistic goal is to make approval slow, expensive, legally risky, and politically painful — and to be ready, legally, at the exact moment the decision is made.

The Strategic Framework

This guide is built around five steps that reinforce each other:

1. **Target identification** — pin down exactly what is proposed, which administration decides, under which procedure, and the date the decision becomes final.
2. **Documentation** — build an evidence record (baseline conditions, impacts, health/economic harm) strong enough to stand up in a public submission and, if needed, in court.
3. **Local opposition** — organise a durable coalition, because sustained pressure over months is what moves elected officials.
4. **Legal challenges** — use the public-information period, the administrative appeal, and (if necessary) the administrative courts.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. The combination is what works: documentation gives the legal challenge its substance; the coalition sustains the media pressure; the legal deadline disciplines the whole campaign. Run them in parallel over a campaign that usually lasts a year or more, adjusting emphasis as the situation changes.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

In some places and for some project types the deck is stacked: an autonomous government committed to a project, a "declaration of public interest" (*declaración de interés público / utilidad pública*) that overrides local zoning, or an emergency/fast-track procedure that compresses the timeline. This does not make opposition pointless — it changes which levers work. When the front door (participation) is narrowed, the courts and the media become more important, and procedural shortcuts themselves become the grounds for a legal challenge. A rushed process is a process with mistakes in it. Section 10 deals honestly with tilted systems, including how to read whether yours is a "clean," "moderately tilted," or "severely tilted" fight, and how that changes your odds.

How to use this guide

Read Sections 1-3 once to get oriented. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines. Sections 5-8 run in parallel, not in order: you will be documenting, organising, preparing legal steps, and talking to journalists at the same time. Sections 9-11 are reference material you will return to. Section 12 pulls it all onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

HOW THE SYSTEM WORKS

Before you can stop a project you have to understand who decides it, how the decision is made, and the words the system uses. Spain is a decentralised state: power over land and environment is split between the central State, the seventeen

autonomous communities (*comunidades autónomas*) — Andalusia, Catalonia, Galicia, Castilla y León, Aragón and so on — and the municipalities. Most fights are won or lost at the autonomous-community and municipal level, not in Madrid.

The levels of government — and what each one controls

The municipality (ayuntamiento). The town hall grants the **licencia de obras** (works/building licence) and the **licencia urbanística** (planning licence) that most construction needs, checking the project against the local plan (**PGOU** — *Plan General de Ordenación Urbana*, the general urban-development plan). It also grants or refuses the **licencia de actividad** (activity licence) for anything with environmental impact. The municipality is legally obliged to resolve a licence application expressly, and within a set period (commonly three months under regional law; if it says nothing, regional rules may treat the licence as granted by *silencio positivo* — positive administrative silence — or refused, depending on the case). The town hall is also the body that must inspect and, where a project is built without or against its licence, order it stopped or demolished under its **disciplina urbanística** (planning-enforcement) powers. Practically, the ayuntamiento is where you will attend plenary sessions (*plenos*), where local councillors can be lobbied, and where the first documents often appear.

The autonomous community (comunidad autónoma). The regional government usually holds the decisive environmental card. For most large projects the environmental authority is a regional body (a *consejería* of environment or its agency), and it is the one that runs the **EIA** and issues the **DIA** — *Declaración de Impacto Ambiental*, the environmental impact statement. The DIA is not itself the licence, but it is a **binding prior requirement**: a project cannot lawfully be authorised against a negative DIA, and the DIA sets the conditions the project must meet. Autonomous communities also have their own planning and environmental laws layered on top of the national ones, so the exact body, deadlines, and thresholds vary by region — always check the specific autonomous community. For wind and solar, the region is usually also the body that grants the substantive energy authorisation, unless the project is large enough to be State-competence.

The central State (Estado). The State sets the framework laws — above all **Law 21/2013** of 9 December, on Environmental Assessment (the national EIA statute), and **Law 27/2006** of 18 July (the Aarhus statute: access to environmental information, public participation, and access to justice). The State's own environmental authority (the Ministry for Ecological Transition, **MITECO**) runs the EIA only for projects that are State-competence — for example, certain ports, coasts, cross-regional infrastructure, offshore energy, large transmission lines, or projects on State-owned land or the maritime-terrestrial public domain. Large renewables above a capacity threshold (historically around 50 MW) are also State-competence.

Which one is "yours"? Ask: who authorises this project, and who runs its environmental assessment? For a wind or solar farm it is usually the autonomous community (or the State if it crosses regions or exceeds a large capacity threshold). For a building or a quarry, the municipality grants the licence but the region may run the EIA. For a macro-farm, the region's environmental authority runs the assessment and the municipality grants the activity licence. Pinning this down is Step 1, and it decides everything else — the deadlines, the forms, the appeal body, and the court you would eventually go to. Getting it wrong (writing to the town hall about a decision only the region can make) wastes weeks you do not have.

How a decision is actually made — the journey of an application

For a project that requires **ordinary EIA** (the large ones — motorways, reservoirs, major industry, large extraction, big energy), the path is roughly:

1. **Submission.** The developer (*promotor*) files the project and an **environmental impact study** (*estudio de impacto ambiental* — the developer's own technical assessment of harm and mitigation). This study is the single most important document in the whole fight, because it is where the developer, on the record, describes the damage.
2. **Scoping / consultations.** The environmental authority consults other public bodies (water, heritage, biodiversity, the affected municipalities) and, in the ordinary procedure, the "public concerned." Sometimes there is an earlier *consultas previas* stage that shapes what the study must cover — worth watching for.
3. **Public-information period (información pública).** This is the moment that matters most to you. The project and its impact study are published (in the regional or State official gazette — the *BOE* or the autonomous community's *boletín*) and opened for written comments (*alegaciones*) for a legally fixed minimum period (commonly 30 working days for ordinary EIA, but check the notice). **Anyone can file alegaciones — you do not need to be a lawyer or a landowner.** What you submit here becomes part of the file the authority must consider and a court can later review. Miss it, and both your political voice and your legal position are weaker.
4. **The DIA.** The environmental authority weighs the study, the consultations, and the *alegaciones*, and issues the **DIA** — approving (with conditions), or concluding the project should not proceed as assessed. A DIA has a validity period (commonly four years unless extended); if the project is not authorised within it, the assessment can lapse and must be redone — a real vulnerability for stalled projects.
5. **The authorisation and the licence.** With a favourable DIA, the competent body grants the substantive authorisation

(for energy, the *autorización administrativa*), and the municipality grants the works/activity licence. **This** — the authorisation and the licence, and sometimes the DIA itself where it is directly challengeable — is usually the act you would take to court.

Smaller projects go through **simplified EIA** (*evaluación simplificada*): the authority issues an *informe de impacto ambiental* deciding whether a full ordinary EIA is needed. If it decides "no" (a *no sometimiento*), the project proceeds with far less scrutiny — and that decision itself can sometimes be challenged, especially where the project plainly should have had full assessment.

Why the public-information period is the hinge. Everything downstream — the DIA, the licence, any court case — is built on the file assembled here. If a real problem is not raised in *alegaciones*, it is harder to raise later, and a court may treat it as a point you slept on. Treat this window as the single most important deadline in the campaign, and build backwards from it.

The rulebook — the policies that decide the outcome

A project is judged against written rules, and your strongest arguments cite them rather than express feelings:

- **The local plan (PGOU / normas subsidiarias).** Does the project fit the land classification (urban, developable, or protected/rustic — *suelo rústico / no urbanizable*)? Projects on protected rural land face a higher bar, and reclassifying land (a *modificación puntual*) to allow a project is itself a decision that can be contested. Renewables on *suelo rústico* often rely on a "public interest" declaration to proceed — scrutinise it.
- **Environmental designations.** Is the site in or near a **Natura 2000** area (a *ZEC/ZEPA* — special conservation or bird-protection zone under the EU Habitats and Birds Directives)? Projects affecting Natura 2000 sites need an "appropriate assessment" (*evaluación adecuada*), and shortcuts there are a classic legal vulnerability. Also check protected species (the *Catálogo de Especies Amenazadas*), protected landscapes, water-protection zones, and cultural-heritage designations (*BIC*).
- **Sectoral law.** Water (the *confederación hidrográfica* — river-basin authority — and the Water Law), coasts (the Coasts Law and the maritime-terrestrial public domain), roads, mining (the Mining Law), and cultural heritage each add their own permits and their own grounds. Each additional permit is another point at which the project can be challenged.
- **The EIA statute itself (Law 21/2013).** Was the right procedure used (ordinary vs simplified)? Was the public-information period real and long enough? Were **alternatives** genuinely assessed, including the "zero option"? Was the project unlawfully **split** to keep each piece under a threshold (project-splitting — *fraccionamiento* — is expressly disfavoured; Spain's Supreme Court has addressed shared-facility wind farms on exactly this point)? Were **cumulative impacts** with other nearby projects assessed?

Follow the money — why the system often leans toward "yes"

Understanding the pressures is not cynicism; it is targeting. Developments bring investment, jobs, and tax and fee revenue to municipalities, and — for renewables — advance national and EU energy targets (the PNIEC, the national energy-and-climate plan) that governments are politically committed to hitting fast. Regional governments compete to attract projects and the investment that comes with them. Land options are often signed with farmers years before a project is public. None of this is illegal, but it explains why the default tilt is toward approval, and why *procedural* rigour (did they actually assess alternatives? was consultation real? was the Natura 2000 assessment adequate?) is often a community's best lever: it holds a "yes"-leaning system to the rules it wrote for itself. When you understand who gains what, you understand where the pressure comes from — and where an exposed flank might be.

The overseers — who watches the decision-makers

- **The administrative courts (*jurisdicción contencioso-administrativa*).** These review the legality of administrative decisions — procedural and substantive. Thanks to Law 27/2006 and the Aarhus Convention, qualifying environmental associations have broad standing here, close to an *actio popularis* in environmental matters. This is the sharpest tool in the box.
- **The Defensor del Pueblo (Ombudsman)** and the regional ombudsmen (the *Síndic de Greuges* in Catalonia and Valencia, the *Ararteko* in the Basque Country, the *Valedor do Pobo* in Galicia, and others). They investigate administrative inaction and maladministration — for example, a town hall ignoring a citizen complaint or failing to resolve within the legal deadline (a duty under Law 39/2015). They cannot annul a decision, but their reports create pressure and paper trails, and they are free to use.
- **The Fiscalía de Medio Ambiente (environmental prosecutor).** A specialised prosecution service for environmental crime — worth contacting where a project involves genuine unlawful destruction, not merely a bad decision.
- **The audit institutions (Tribunal de Cuentas and regional equivalents)** and the anti-fraud offices that exist in

- several autonomous communities (e.g. Valencia, Catalonia, the Balearics), for the money side.
- **SEPRONA** (the Guardia Civil's nature-protection service) — for on-the-ground environmental offences and evidence.

Knowing these bodies exist matters even if you never use them: naming the right overseer in a letter signals you understand the system, and copying one in can change how an ayuntamiento responds.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — they summarise patterns across documented Spanish and European campaigns, not a controlled study. Use them to prioritise effort, not to predict your specific outcome. The single most important lesson in the whole table is at the bottom: combining all five steps is several times more effective than any one of them alone.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (EUR)	What "Success" Means
Documentation only	5-10%	3-4 months	€500-8,000	Project slowed; public better informed
Local opposition only	15-20%	6-12 months	€1,000-10,000	Public pressure; minor modifications
Legal only	20-30%	12-36 months	€0-15,000	Slow; strong only if the procedural defect is real
Media only	10-15%	3-6 months	€500-5,000	Public knows; no action by itself
Docs + opposition	25-35%	12 months	€3,000-15,000	Slowed; some modifications
Docs + legal	30-40%	12-24 months	€3,000-20,000	Stronger, evidence-backed legal case
Opposition + legal	35-45%	12-24 months	€5,000-20,000	Political pressure strengthens the case
Opposition + media	30-40%	9-12 months	€2,000-12,000	Visibility creates political pressure
All 5 steps combined	55-70%	12-30 months	€8,000-30,000	DIA negative/conditioned, licence refused, court annulment, or project halted/withdrawn/reshaped

Key insight: all five steps together are roughly **3-4x more effective** than any single step.

A note on legal cost: filing alegaciones is free; the administrative appeal (recurso de reposición/alzada) is free; complaints to the Defensor del Pueblo and the Fiscalía are free. Only the contencioso-administrativo court stage needs a lawyer (abogado) and court agent (procurador), and even there, Aarhus rules require that access to environmental justice not be "prohibitively expensive," legal aid (justicia gratuita) is available for qualifying associations and individuals, and public-interest environmental lawyers and university legal clinics take some cases. So the "Legal" figures above are not a hard floor — the main unavoidable cost is good expert evidence.

Effectiveness Visualization

SUCCESS PROBABILITY (DIA refused/conditioned, licence refused, court annulment, or project halted/reshaped/withdrawn)

CLEAN DECISION SCENARIO:

All 5 steps combined:	55–70%
4 steps combined:	45–60%
3 steps combined:	40–50%
2 steps combined:	30–40%
Single step:	5–20%

WITH MODERATE TILT:

(a strong regional renewables/extraction push, developer-funded study)

All 5 steps combined:	40–50%
4 steps combined:	30–40%
3 steps combined:	20–30%
2 steps combined:	15–25%
Single step:	3–12%

WITH SEVERE TILT:

(a "strategic"/public-interest project, fast-track procedure, developer-only studies)

All 5 steps combined:	25–35%
4 steps combined:	18–28%
3 steps combined:	12–20%
2 steps combined:	8–15%
Single step:	2–8%

How to read this honestly. Even in a severe tilt, a full five-step campaign has a real, non-trivial chance — and every one of those campaigns also produces delay, cost, precedent, and a trained community that is ready for the next project. A "loss" that delays a project two years and forces a redesign is not nothing. Conversely, a single-step effort in a clean scenario is still likely to fail. The message is the same in every scenario: **combine the steps, and start early.**

Step Importance Ranking (When All Combined)

1. **Documentation** — without it, nothing else has substance. It is the raw material of the alegaciones, the court case, and the media story.
2. **Legal challenge** — Spain's open standing plus procedural rigour makes this an unusually available and powerful lever.
3. **Local opposition** — sustains the pressure and the coalition, and supplies the political weight officials respond to.
4. **Public participation (alegaciones)** — cheap, essential, and the thing that preserves your legal position.
5. **Media** — the amplifier that multiplies all of the above.

The lesson from winning Spanish campaigns is consistent: they combined a rigorous file, a durable coalition, sustained media, and a well-aimed legal challenge on procedural grounds — no single track alone.

What Spanish Campaigns Actually Show

A few patterns recur. Spain's distinctive lever is **open standing plus procedural rigour** before the administrative courts, with **EU law** behind it: with a rigorous file, the *alegaciones*, and a durable coalition, a defective assessment or authorisation is unusually achievable to annul.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Before anything else, answer five questions. Write the answers down in a shared document your whole group can see — this becomes the campaign's factual spine, and it stops the group arguing about things that are actually knowable.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: the exact location and footprint (coordinates, hectares), the project type and size (megawatts, number of turbines, animal places, tonnes extracted), what is on the land now (habitat, farmland, watercourses, homes, heritage, cañadas/drove roads), and what the project would do to it. Obtain the developer's **environmental impact study** — it is public during the *información pública* — and read what *it* admits. Developers' own studies routinely concede impacts ("temporary exceedance of noise limits," "residual effect on the population of species X," "loss of Y hectares of habitat," "significant landscape impact"); those admissions are the strongest raw material you have, because they come from the other side and cannot be dismissed as activist exaggeration. Make a list of every admitted impact with its page reference. That list is the skeleton of your alegaciones.

Practical sources: the *información pública* notice in the BOE or regional gazette (which tells you where the file is deposited); the region's environmental portal; the *Catastro* (cadastre) and *Sede Electrónica del Catastro* for parcels and land use; IGN and regional GIS viewers for maps and orthophotos; the Natura 2000 *formulario normalizado de datos* for any nearby protected site; and the confederación hidrográfica for water.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which body runs the **EIA** and will issue the **DIA** (usually the autonomous community's environmental authority; the State's MITECO for State-competence projects); (b) which body grants the substantive **authorisation** (for energy, the regional or State energy directorate); and (c) which municipality grants the **licence**. Name the officials and the political leadership of each — the *consejero/a* of environment, the *director/a general*, the mayor (*alcalde/alcaldesa*) and the relevant *concejal*. These are the addressees of every letter, and the defendants in any eventual court case. Knowing whether your decision-maker is elected (a mayor, a regional minister) or a career official changes your strategy: elected officials feel political and media pressure; career officials respond more to legal and procedural pressure.

Question 3: What Specific Action Stops It?

A project can be stopped at more than one point, and you should know all of them: a negative or lapsed **DIA**; refusal of the substantive authorisation; refusal of the municipal licence; a court annulment of any of these; the lapse of a DIA whose validity period runs out before authorisation; or a political decision to withdraw. Map the decision points and their dates on a timeline. Your campaign aims pressure and evidence at the specific act that, if blocked, stops the project — usually the DIA (if you can make a favourable one unlawful or impossible) or the authorisation/licence.

Question 4: When Is the Decision Final?

This is the deadline that disciplines everything. Find and diarise: - The **público-information period** dates (published in the BOE or the regional gazette) — the window to file *alegaciones*, commonly around 30 working days for ordinary EIA. - The expected DIA and authorisation dates (often estimable from the procedure's stage). - The **DIA validity period** — if authorisation is not granted within it (often four years), the assessment lapses. - The **deadline to file a court challenge** once a decision is published: the **recurso contencioso-administrativo** must generally be filed within **two months** of the notification or publication of the act (article 46 of Law 29/1998). The prior administrative appeals (*reposición/alzada*) have **one-month** deadlines. These clocks are short and unforgiving — the single most common way Spanish campaigns lose a winnable case is by missing one.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which firms are behind the developer, whether the land was optioned or changed hands shortly before the proposal, and whether any decision-maker has a connection to the developer. Use public sources — the commercial registry (*Registro Mercantil*) for company ownership and directors; the land registry (*Registro de la Propiedad*) and cadastre (*Catastro*) for parcels, ownership, and transfers; officials' asset and interest declarations; party-funding records; and public-procurement portals. Build a dated, sourced timeline (*option signed* → *project announced* → *application filed*). Keep this rigorous and evidenced; it is powerful in the hands of a journalist and dangerous in the hands of an amateur. Section 11 covers doing it safely and lawfully.

Output of Step 1: a one-page fact sheet with the project's exact description, the three deciding bodies and their named officials, the specific act you are trying to block, every deadline, and the money map. Everything else in the campaign builds on this page.

STEP 2: DOCUMENTATION

Documentation is what separates a campaign that a court and the public take seriously from one that can be dismissed as NIMBY sentiment. It is also the most under-done part of most campaigns, because it is slow and unglamorous. Do it anyway: the group that shows up to the *información pública* with a sourced, expert-reviewed file wins arguments that the group with a petition and strong feelings loses. Build three layers.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — because you cannot show harm without a baseline, and once the ground is cleared

the "before" is gone forever. Start this the day you learn of the project.

Water. Request and record water quality and flows from the **confederación hidrográfica** (river-basin authority) and the region's environmental monitoring. Note aquifers, wells, springs, seasonal watercourses, and any protected water bodies. In dry regions, water is often the strongest argument — a solar or industrial project's water demand, or a quarry's effect on the water table, moves rural communities and regulators alike.

Air and noise. Obtain existing air-quality data from the regional network; if there is none near the site, that absence is itself worth noting (the project's own study should establish a baseline). For noise, the pre-project quiet of a rural area is a real, legally relevant value.

Biodiversity and habitats. Document protected species and habitats using regional biodiversity inventories, the **Natura 2000** standardised data forms for any nearby ZEC/ZEPA, the *Catálogo Español/Regional de Especies Amenazadas*, and reputable citizen-science and NGO records (e.g. bird data from SEO/BirdLife). Photograph and date sightings. Raptors, steppe birds, and bats are frequently decisive in wind-farm cases; specific plant or invertebrate species can be decisive anywhere.

Land, heritage, and people. Use the **Catastro** for parcels and current agricultural use; document drove roads (*vías pecuarias*), footpaths, and communal land; and record heritage — archaeological sites, *Bienes de Interés Cultural*, and the intangible value of the landscape (which Spain protects under the European Landscape Convention). Record the human baseline too: population, farming and tourism livelihoods, and health context, using **INE** (national statistics) and regional health data.

How to hold it. Keep everything dated, sourced, and photographed, in a shared, backed-up folder. A well-organised baseline is more useful than a merely large one. This layer alone can take a month; it is the foundation everything else stands on.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text here is the developer's **environmental impact study** — read it critically, line by line, and catalogue four things:

1. **Admitted impacts.** Every harm the study itself concedes, with page references. These are unarguable.
2. **Underestimated or omitted impacts.** Where the study downplays or ignores harm. **Cumulative impacts** are the most common and most powerful gap: several small solar or wind farms, each assessed alone, can add up to a landscape-scale transformation that was never assessed as a whole. Spanish and EU law require cumulative assessment; its absence is a strong ground.
3. **Alternatives.** Did the study genuinely assess real alternatives — including different sites, different scales, and the "zero option" (not building) — or were "alternatives" a formality that always pointed to the developer's preferred plan? Inadequate alternatives analysis is a recurring reason courts annul approvals.
4. **Project-splitting (*fraccionamiento*).** Was one big project sliced into pieces each kept below an EIA threshold or assessed separately? Spain's Supreme Court has addressed wind farms that share infrastructure on exactly this point. If you see splitting, flag it — it can unravel the whole approval.

Get expert eyes on it. A critique carries far more weight when a qualified professional — a biologist, hydrologist, acoustician, or environmental engineer — has reviewed and signed it, even pro bono. Universities, retired professionals, and national NGOs (Ecologistas en Acción, SEO/BirdLife, WWF España, Amigos de la Tierra, Greenpeace) are sources of expertise and sometimes of experts willing to help. The goal is a written impact critique that reads as technical, not emotional, and that a regulator and a judge can act on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, councillors, and reporters. Document:

- **Health.** Dust and air quality (quarries, macro-farms, industry), water contamination, noise, odour (macro-farms are notorious for this), and traffic and safety during construction. Use recognised standards and, where possible, a professional's assessment.
- **Economy and livelihoods.** The effect on existing farming, extensive livestock, tourism, and rural repopulation. In much of interior Spain, the argument that a project trades permanent local livelihoods (agriculture, agrotourism) for a few temporary construction jobs and a distant owner's profit is both true and persuasive. Quantify it: hectares of farmland lost, tourism value at risk, jobs compared.
- **Property and place.** Effects on property values and on the viability of villages already fighting depopulation (*la*

España vaciada — "emptied Spain" — is a powerful national frame).

Package this layer for two audiences: a rigorous version for the alegaciones and any court, and a plain-language, one-page version for neighbours and the press.

How to Structure Your Documentation

- **Phase 1: Baseline conditions (Months 1-2).** Assemble the "before" record while you still can, before ground is cleared. Request environmental data early (see the records-request template in Section 9); public bodies have legal deadlines to answer under Law 27/2006.
- **Phase 2: Impact analysis (Months 2-3).** Dissect the impact study; get expert review lined up before the *información pública* opens so your critique is ready to file.
- **Phase 3: Health/economic analysis (Months 3-4).** Quantify the human and economic stakes and package them for the public and the media.

Common Documentation Pitfalls (What Fails)

- **Pitfall 1 — Waiting for perfect data.** File your *alegaciones* on time with the best evidence you have; a strong-enough argument on the deadline beats a perfect one filed a day late (and legally worthless).
- **Pitfall 2 — Only environmental data.** Councils and courts respond to health, economic, and procedural arguments too. Breadth wins; a case built only on "we love this landscape" is easy to dismiss.
- **Pitfall 3 — No expert review.** An impact critique that no qualified person has signed is easy for the authority to wave away. One page from a credentialed expert can change the file's whole weight.
- **Pitfall 4 — Ignoring the proponent's own admissions.** The developer's study is a goldmine of concessions. Quote it back to the authority verbatim, with page numbers. Nothing is harder for a regulator to ignore than the developer's own words.

Documentation Budget Breakdown (EUR)

Campaigns run on very different budgets; documentation can be done cheaply with volunteer expertise and public data, or more robustly with paid specialists. Indicative ranges:

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering	€0-200	€500-2,000
Expert technical report (hydrology/ecology/acoustics)	€0 (pro bono)	€800-5,000
Independent noise/air/odour measurement	€0-300	€300-2,000
Legal consultation on the file	€0 (clinic/NGO)	€200-1,500
Printing/outreach materials	€50-200	€200-500

Much can be done for near-zero with pro-bono experts and public data. Spend where a paid report materially strengthens a likely court case — one solid expert report on the decisive issue (usually water, a protected species, or cumulative impact) is worth more than five general ones.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it doubles as a guide to the sources this map points you toward.

Start at the town hall's own website. In Spain, the official documents for a project — the licence application, the environmental impact study, the planning file, the public-information notice — are usually published by the municipality (*ayuntamiento*) that handles it, or the autonomous community's environmental portal. The municipal *sede electrónica* and the regional gazette (the *boletín*) are where the *información pública* notice appears and where the file is deposited. Bookmark them on day one; check them weekly. This is the single most important habit, because a project's legal clock starts running from what is published there.

The project file and the impact study. Get the developer's *estudio de impacto ambiental* the moment the *información pública* opens — it is public, and it is where the developer admits harm in its own words. If it is not online, request it in writing (the access route is below).

Baseline environmental data. Water quality and flows from the *confederación hidrográfica* (river-basin authority); air data from the regional monitoring network; protected-species and habitat records from the regional biodiversity inventory and the Natura 2000 standard data form for any nearby ZEC/ZEPA; land use from the *Catastro* (cadastre) and its electronic office.

Ownership and money. Company ownership and directors from the commercial registry (*Registro Mercantil*); parcels, owners, and recent transfers from the land registry (*Registro de la Propiedad*) and the *Catastro*; officials' asset and interest declarations and the transparency portals (*Portal de Transparencia*) for who holds what; public-procurement records for related contracts.

How to force a document into the open. Under Law 27/2006 (the Aarhus statute), anyone can request environmental information held by a public body without proving a personal interest, and the body must answer within a set period. Use the records-request wording in Section 8E. For non-environmental documents, the general transparency law applies.

Tie it to the map. The dots and layers on this map are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations, legal-aid groups, and watchdogs already working nearby. Treat a mapped entry as the first thread to pull, then follow it into the registries above.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Sustained, visible, local pressure is the single biggest political factor in whether an elected body says no. But there is a Spain-specific reason to organise formally, and early: a **legally constituted association** (*asociación*) is what unlocks the courts. An environmental association that meets the Law 27/2006 criteria — statutes whose stated purpose includes environmental protection, and (typically) at least two years of active existence — gains the broad standing to challenge an approval, close to an *actio popularis*. So constituting a proper *asociación* is not administrative box-ticking; it is building the vehicle that can later take the region to court. Do it in the first weeks, register it properly, hold real assemblies, and keep minutes. A committee that exists only on WhatsApp cannot sue; an association with clean statutes and a paper trail can.

Two further principles: **breadth beats intensity** (a coalition that includes farmers, hunters, tourism businesses, and pensioners is far harder to caricature than a group of "ecologists"), and **durability beats spikes** (a campaign that sustains modest pressure for a year beats one that stages a huge protest and then vanishes).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-on-one conversations. Start with the people most directly affected — neighbours whose land, water, view, or health is at stake; farmers; local businesses. Personal conversations, not mass messages, build a durable core. Listen first: people's real reasons for opposing (a well, a family plot, a night sky) are more motivating than abstractions, and they tell you which arguments will land locally.

Step 1b: Affinity groups by concern. Let people plug in through what they care about — water, farmland, health, landscape, heritage, hunting, tourism. Different concerns reach different neighbours, and a person who joins "for the water" often stays for everything.

Step 1c: Constitute the association (early). Register an *asociación* under the association law, with statutes that include environmental protection among its aims. Elect officers, open a simple bank account, and start keeping minutes and a membership list. This is the legal vehicle for standing, for receiving donations and crowdfunding, and for signing coalition agreements. If a suitable local or regional association already exists and is willing to front the fight, joining it can save months.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Community forum. Hold a public meeting to inform neighbours, gather support, and recruit. Bring the maps, the impact study's own admissions, and the deadline for *alegaciones*. A well-run forum — clear facts, a concrete ask ("file an *alegación*, here's how"), and a sign-up sheet — converts worry into members and submissions.

Step 2b: Opposition materials (factsheets). Produce one-page, factual, sourced materials. Lead with the health/economic/landscape stakes and the deadline to act. Include a simple, copyable model *alegación* so that filing is easy. Make a version for social media and a version for the village noticeboard and the bar — reach people where they are.

Step 2c: Public petition and mass *alegaciones*. A petition localises and visualises opposition; more importantly, organise a **mass submission of individual *alegaciones***. Fifty individually filed *alegaciones* carry more weight — legally and politically — than one group letter, because each is a submission the authority must process. Run "alegación workshops" where people fill and file them together.

Step 2d: Media coverage at launch. Time the launch to the *información pública* period so coverage and the deadline reinforce each other. A packed forum and a clear deadline make an easy, visual story (see Section 5 and the press templates in Section 9).

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation outreach. Bring in regional and national environmental organisations (Ecologistas en Acción, SEO/BirdLife, WWF España, Amigos de la Tierra, Greenpeace, and regional groups) — many have local branches, technical expertise, and, crucially, legal capacity and experience litigating exactly these cases. Add farming unions, neighbourhood associations, hunting societies, and heritage and hiking groups. Each new member organisation adds credibility, reach, and sometimes lawyers.

Step 3b: Coalition agreements (written). Agree roles, spokespeople, decision-making, and messaging in writing before disagreements arise. Who speaks to the press? Who holds the money? Who instructs the lawyer? Writing it down early prevents the internal splits that sink more campaigns than any developer does.

Step 3c: Coordinated public work. Joint *alegaciones*, joint press, shared experts, and — the big one — shared legal costs. A coalition's mass *alegaciones* and pooled legal fund are far stronger than any single group's, and a crowdfunding campaign for the legal stage both raises money and demonstrates public support.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Public demonstrations. Lawful, visible, well-organised public actions — marches, human chains, tractoradas (tractor convoys, powerful in farming country), symbolic acts at the site or the town hall — keep the issue alive and signal durability to officials. In Spain, public assembly is a protected right but requires prior notice to the *Subdelegación del Gobierno*; comply, and prioritise safety.

Step 4b: Media campaign (ongoing). Feed the story new developments — the DIA, the council vote, the court filing, a new expert report — so coverage continues rather than spiking once and dying.

Step 4c: Common opposition failure points (how to prevent). Campaigns fade when they miss the *alegaciones* deadline, rely on sentiment over evidence, splinter internally, or peak too early and burn out before the decision. Guard against each: diarise every deadline (twice), build the evidence file, agree roles in writing, and pace the campaign to the decision timeline — which is usually longer than newcomers expect. Assume it is a marathon.

Opposition Building Budget: Year-Long Campaign (EUR)

Highly variable. A lean, mostly-volunteer campaign can run on a few hundred to a few thousand euros (registering the association, printing, basic outreach, a website or social accounts). A campaign expecting litigation should budget for expert reports (€1,000-8,000) and legal costs at the *contencioso* stage (variable; often €3,000-15,000, sometimes far less with legal aid, a clinic, or a public-interest lawyer). The two proven ways Spanish community campaigns fund the legal stage are crowdfunding (which doubles as a show of public support) and coalition cost-sharing

across several organisations. Keep transparent accounts — it protects the campaign's credibility and its members.

STEP 4: LEGAL CHALLENGES

Spain gives communities an unusually strong legal toolkit, but it runs on short deadlines and specific procedures. Understand the three tracks — participation, the administrative appeal, and the courts — and how they feed each other.

TRACK 1: PUBLIC PARTICIPATION — THE FRONT DOOR (*alegaciones*)

During the público-information period, file written **alegaciones** (objections/observations) on the project and its impact study. This is open to anyone, costs nothing, and is the foundation of every later step:

- **It builds the record.** The authority must consider the *alegaciones* and, in practice, respond to the substantive ones in the DIA or the resolution. A point raised here is far easier to argue later in court; a point never raised is far weaker, and a court may refuse to hear an issue you could have raised and did not.
- **Aim at procedure and substance both.** Strong grounds include: inadequate assessment of alternatives; ignored cumulative impacts; unlawful project-splitting (*fraccionamiento*); a defective or too-short público-information period; failure to properly assess Natura 2000 effects (a missing or inadequate *evaluación adecuada*); reliance on an outdated or incomplete impact study; and inconsistency with the local plan or a protected-species regime.
- **Mass and quality both count.** Many individual *alegaciones* signal political weight and each must be processed; a few technically rigorous, expert-backed ones build the legal case. Do both — run workshops for the mass filings and have your experts draft the technical ones.
- **How to file.** Submit through the official registry (in person, by post at a *registro*, or via the *sede electrónica*) within the deadline, and **keep the stamped/dated receipt**. The receipt is your proof that you are part of the record.

TRACK 2: THE ADMINISTRATIVE APPEAL (*recursos administrativos*)

Once a decision is issued (a DIA-based authorisation, a licence), you may be able to challenge it **within the administration** before or instead of going to court:

- **Recurso de reposición** (optional — *potestativo*): filed within **one month** to the same body that issued the act, when the act ends the administrative route (*agota la vía administrativa*). The body has one month to resolve; if it stays silent, the appeal is deemed rejected (*silencio negativo*), which opens the court door.
- **Recurso de alzada** (mandatory where it applies): filed within **one month** to the superior body, for acts that do **not** yet end the administrative route. It must be resolved within three months; miss it, and you generally lose the right to go to court at all.

Which applies depends on the act and the administration — **check the notification**, which by law must state the available *recurso* and its deadline. The administrative appeal is cheaper and faster than court, occasionally fixes the problem, and even when it fails it can be a required step before litigation and a chance to put your legal arguments on the record.

TRACK 3: JUDICIAL REVIEW — THE CONTENCIOSO-ADMINISTRATIVO COURTS

This is the powerful lever. The administrative courts review the **legality** of the decision — procedural and substantive — and can **annul** it.

- **Standing is broad.** Thanks to the **Aarhus Convention** and **Law 27/2006**, an environmental association meeting the statutory criteria can bring the challenge even without a direct personal injury — a near *actio popularis* in environmental matters. This is why constituting a proper *asociación* early (Step 3) matters so much. Directly affected individuals also have standing on their own account (owners, neighbours in the zone of impact).
- **The deadline is short and strict.** A **recurso contencioso-administrativo** must generally be filed within **two months** of the notification or publication of the challenged act (article 46 of Law 29/1998, the administrative-jurisdiction law). Diarise this the moment a decision appears; missing it is almost always fatal, and no amount of merit saves a late filing.
- **Which court.** Depending on the act and the body, the competent court is the *Juzgado de lo Contencioso-Administrativo*, the *Tribunal Superior de Justicia* (TSJ) of the autonomous community, or the *Audiencia Nacional* (for State acts), with onward appeal (*recurso de casación*) to the Supreme Court (*Tribunal Supremo*) in limited cases. Your lawyer will identify the right forum.

- **Where procedural grounds shine.** Spanish and EU courts have repeatedly annulled approvals for EIA failures: no genuine assessment of alternatives, ignored cumulative effects, unlawful project-splitting (the Supreme Court has addressed wind farms sharing facilities on exactly this issue), inadequate público-information, and defective Natura 2000 assessment. A procedural defect can void an approval **without** your having to prove the project is substantively wrong — which is why procedure is usually the sharpest line of attack.
- **Interim suspension (*medida cautelar*).** You can ask the court to suspend the authorisation while the case is decided — critical when the developer could otherwise clear the land or build before judgment. Courts weigh the balance of harm (*periculum in mora*) and the apparent strength of the case; irreversible destruction of protected habitat or felling of mature woodland is a strong argument for suspension. Ask for it explicitly and early.
- **Costs and risk.** Litigation can carry a costs risk if you lose (*condena en costas*), though environmental-case cost rules — shaped by Aarhus, which requires that access to justice not be "prohibitively expensive" — can limit exposure, and courts have discretion. Get local legal advice on costs before filing, and fund the stage through coalition cost-sharing, crowdfunding, legal aid, or a public-interest lawyer.

The three legal challenge types

TYPE 1: PROCEDURAL / ADMINISTRATIVE CHALLENGE (fastest, cheapest, often highest-yield)

Attack how the decision was made — defective público-information, ignored *alegaciones*, missing or inadequate assessments (alternatives, cumulative, Natura 2000), or project-splitting. A procedural win annuls the act regardless of its merits, which is why this is usually the first line of attack.

TYPE 2: SUBSTANTIVE ENVIRONMENTAL LITIGATION (longer, more expensive)

Argue the decision is substantively unlawful — e.g. it authorises harm to a protected site or species that the law forbids, or is irreconcilable with the local plan. Slower and evidence-heavy; this relies on your Layer-2 documentation.

TYPE 3: POST-APPROVAL / COMPLIANCE CHALLENGE (often high-yield)

Once built or under construction, monitor compliance with the **DIA's conditions** and the licence. Breaches trigger the municipality's **disciplina urbanística** duty to inspect and act (a duty the Ombudsman treats as non-discretionary), and can support enforcement complaints, sanctions, or fresh challenges. Many projects that were lawfully approved are unlawfully *built*, and that is a second bite.

Legal Strategy Decision Tree

1. **Is the público-information period open?** → File rigorous *alegaciones* now (and mass filings); keep receipts.
2. **Has a decision issued?** → Read the notification for the *recurso* and deadline; file the administrative appeal (*reposición/alzada*) within one month if applicable.
3. **Administrative route exhausted or not required?** → File the *recurso contencioso-administrativo* within two months; request a *medida cautelar* (suspension) if destruction is imminent.
4. **Project approved but you have a procedural ground?** → Litigate the procedure; ask for suspension.
5. **Project built?** → Monitor DIA/licence compliance; use *disciplina urbanística*, enforcement complaints, and the Fiscalía where there is a genuine offence.

Litigation Success Factors

A registered environmental association with clean statutes and the required track record; a rigorous, expert-backed evidence file filed as *alegaciones*; a clear procedural defect; strict deadline discipline; competent administrative-and-environmental-law counsel; and a request for interim suspension where harm is imminent. Missing any one weakens the case; missing the deadline ends it.

What to Avoid: Legal Failures

Missing the two-month court deadline (or the one-month appeal deadline); relying on sentiment instead of a documented legal ground; failing to raise a point in *alegaciones* and trying to introduce it late; filing without keeping receipts; and going to court without counsel who actually practises administrative and environmental law. The law is powerful here, but only for those who respect its clocks and its forms.

STEP 5: MEDIA STRATEGY

Media rarely stops a project by itself, but it raises the political cost of "yes," protects the campaign and its members, sustains momentum through a long fight, and reaches allies and experts you would never find otherwise.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the impact study's own damning admissions (quoted, with page numbers), a named family whose livelihood or health is at stake, a clear deadline, and a map or striking image. Make it easy: a journalist who can write the story from your press kit in twenty minutes will write it; one who has to chase you for basics will not. Respect their deadlines and never give them a fact you cannot stand behind — one exaggeration burns the relationship.

The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-vs-Goliath frame + a visual (the threatened landscape, a packed public meeting, a *tractorada*) = coverage. Renewable-megaproject and macro-farm fights in rural Spain have drawn national attention on exactly this formula, especially when tied to the powerful ***España vaciada*** ("emptied Spain") narrative — communities fighting depopulation being asked to sacrifice their land and livelihoods for distant profit. Find your version of that frame.

Know the Outlets That Cover This Beat

Map, before you need them: the local and provincial press; the environmental desks of national outlets (*El País*, *elDiario.es*, *La Marea*, and others have covered these fights); regional radio and TV (including the autonomous broadcasters and RNE regional editions); the rural-affairs and agricultural press; and specialist environmental media. Build a contact list with names, beats, and deadlines.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable local contact for the story. One trusted relationship with a regional journalist is worth a dozen cold press releases. Offer them access — to the site, to affected families, to your experts — and they will keep coming back as the story develops.

Sample Media Timeline

Launch coverage with the *información pública* period (a clear deadline is a natural news peg); refresh it at each milestone — the mass *alegaciones* filing, the DIA, the council vote, the court filing, any suspension order or expert report. Each is a fresh reason to run the story again, keeping the project in the public eye through the long wait.

Media Measurement

Track coverage, but measure what matters: whether officials are responding, whether the coalition is growing, whether new experts or allies come forward, and whether the political tone around the project is shifting. Column inches are a means, not the end; the end is a decision-maker who now finds this project more trouble than it is worth.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often win in Spain — so you file the right fact against the right rule.

Faulty or absent public participation → procedural annulment. If the *información pública* was skipped, too short, or the *alegaciones* went unanswered, that alone can void an approval. Feed it with: the dated notice (or its absence), your

stamped *alegaciones* receipts, and the resolution's failure to respond to them.

No genuine assessment of alternatives → procedural annulment. Spanish and EU law require real alternatives, including the zero option. Feed it with: the impact study's alternatives chapter, showing it is a formality that always points to the developer's plan.

Ignored cumulative impacts → substantive/procedural challenge. Several nearby projects assessed in isolation is a recurring, winnable defect. Feed it with: a map and list of the other projects, and the study's silence on their combined effect.

Project-splitting (*fraccionamiento*) → annulment. One project sliced to stay under a threshold. Feed it with: shared access roads, substations, or ownership linking the "separate" pieces (the Supreme Court has treated shared-facility wind farms this way).

Inadequate Natura 2000 assessment → annulment. A missing or thin *evaluación adecuada* where a protected site is affected. Feed it with: the Natura 2000 data form and your expert's critique of the study's treatment of it.

A conflicted decision-maker → annulment on a lower bar. You need not prove corruption; an official who should have abstained (Law 40/2015) but did not can taint the decision. Feed it with: the ownership and interest records showing the connection.

The pattern: match one clean, documented defect to one clear rule, and lead with the procedural ones — they annul an approval without your having to win the argument about whether the project is "good." Everything else is support.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Send important ones through the official registry (in person, by post, or via the *sede electrónica*) so there is a dated record, and keep every receipt.

8A. Email to a reporter (story pitch)

Subject: [Town]: neighbours challenge [project] before [deadline] — documents attached

Dear [name],

A [project type] is proposed at [location, province]. The developer's own environmental impact study concedes [specific admitted impact, quoted, with page number]. The público-information period closes on **[date]**.

A local association, **[name]**, representing [number] neighbours and [list any coalition partners], is filing objections and has commissioned [expert report / gathered a petition of X signatures]. The human stakes: [health/economic/landscape point — e.g. "the project would take 300 hectares of farmland that supports N families in a village already losing population"].

I can connect you with affected residents, share the full file, and arrange a site visit. Could we talk this week?

[Name] · [Association] · [phone] · [email]

8B. Letter to a decision-maker (region or town hall)

Subject: Objection to [project] — file reference [ref]

To [name and role — e.g. Consejero/a de Medio Ambiente / Alcalde/sa]:

We write on behalf of [association] regarding [project] at [location]. We respectfully ask you to **[issue a negative DIA / refuse the authorisation / decline the licence]** for the following reasons, set out in full in our *alegaciones* of [date]:

1. [Ground 1 — e.g. the environmental impact study does not genuinely assess alternatives, as Law 21/2013 requires.]
2. [Ground 2 — e.g. cumulative impacts with [other nearby projects] were not assessed.]
3. [Ground 3 — e.g. the effect on [Natura 2000 site / protected species] was not adequately evaluated.]

We request written confirmation of receipt and a reasoned response, as required by Law 39/2015. We are at your disposal to provide the underlying evidence.

[Signatories, association, contact]

8C. Public objection submission (*alegaciones*)

To [the competent environmental/planning authority] Alegaciones in the público-information period for [project], file [ref], published in [gazette] on [date]

[Name / association], with standing as [an affected resident / an environmental association under Law 27/2006 whose statutes include environmental protection], submits the following objections within the público-information period:

1. **Procedure — alternatives.** [The study fails to assess real alternatives, including the zero option, contrary to Law 21/2013.]
2. **Cumulative impact.** [This project, together with [others], must be assessed cumulatively; assessed in isolation it understates the true landscape/water/species impact.]
3. **Protected sites and species.** [The project affects [ZEC/ZEPA/species] and lacks an adequate *evaluación adecuada*.]
4. **Project-splitting.** [The project appears to be fractioned from/with [related project] to avoid full assessment.]
5. **Baseline and impacts.** [Documented harm to water/air/habitat/farmland, with sources attached as annexes.]

We request that these objections be considered and expressly answered, and that the project be **[refused / subjected to full ordinary EIA]**.

[Place, date] · [Signature] · [Contact] · [Annexes: expert report, maps, data]

8D. Coalition outreach email (to an organisation)

Subject: Join the coalition against [project] — [town/comarca]

Dear [organisation],

We are a local association opposing [project] at [location], which threatens [stakes]. We are building a coalition to file joint and mass *alegaciones*, share expert costs, and prepare a possible legal challenge under the Aarhus / Law 27/2006 route.

Your [legal capacity / regional reach / technical expertise in X] would strengthen the effort considerably. Could we meet — even by video — to discuss a written coalition agreement (roles, spokespeople, shared legal fund)?

[Name, association, contact]

8E. Records request (access to environmental information, Law 27/2006)

Subject: Request for environmental information — [project/site], under Law 27/2006

To [authority]:

Under Law 27/2006 on access to environmental information, we request copies of: 1. the full project file and environmental impact study for [project]; 2. all reports and consultations in the file (water, biodiversity, heritage, affected municipalities); 3. [specific data — water quality/flow, air, protected-species records for the site].

Please provide these within the legal period. If any part is withheld, please state the specific legal basis for each redaction.

[Name/association, date, contact]

8F. Administrative appeal / notice of judicial challenge

Subject: Recurso against [decision], file [ref], notified/published [date]

To [body]:

[Name/association] hereby files a **recurso [de reposición / de alzada]** against [decision], on the following grounds: [procedural and substantive grounds, numbered, cross-referencing the *alegaciones*]. We request that the decision be annulled.

Should this appeal be rejected expressly or by silence, we reserve the right to file a *recurso contencioso*-

administrativo within the legal two-month period, and to request interim suspension of the act.

[Date, signature; file within the applicable one-month deadline, through the correct body]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Town] neighbours file [number] objections against [project] before [deadline]

[Association] today submitted [number] objections to [project] at [location], citing [top two grounds]. "[Short, human quote from an affected resident]," said [name, role].

The developer's own environmental study admits [quoted impact]. The decision rests with [authority]; the público-information period closes on [date].

[Association] represents [who], and is supported by [coalition partners].

Contact: [name, phone, email]. Photos, the full objection, and interviews available on request.

8H. Enforcement / compliance complaint (post-approval)

Subject: Breach of DIA/licence conditions — [project], [location]

To [municipality / regional environmental authority]:

We report that [project] is not complying with [specific DIA/licence condition — e.g. the required seasonal work stoppage, the water-protection measure, the restoration obligation]. Under your **disciplina urbanística** and environmental-enforcement duties, we request an inspection and, if the breach is confirmed, the corresponding stop/sanction action.

We attach [dated photographs, coordinates, evidence]. Please confirm the inspection and its outcome in writing. We are also notifying [SEPRONA / the Fiscalía de Medio Ambiente] where the facts may constitute an offence.

[Association, date, evidence]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual file references and gazette dates, and — for anything heading to court — have administrative-law counsel review it. Deadlines are strict; a well-written letter filed late is worthless. Always keep the dated receipt of anything you submit.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a coalition or run a year-long campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **File an *alegación* before the deadline.** One page, in your own words, citing one or two concrete problems (no genuine alternatives; a protected species; the water impact). It costs nothing, it goes on the record, and it preserves the legal position. This is the highest-value single act.
2. **Get the impact study and quote its worst admission back to the authority.** The developer's own words carry more weight than any outside claim.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach an expert or a lawyer you would never find alone.
4. **Request the file under Law 27/2006** (Section 8E) — even if someone else uses it later.
5. **Point one existing organisation at the fight.** A regional environmental group with legal capacity, or a university legal clinic, may take it from there. You do not have to lead; you have to hand off.
6. **Tell your neighbours the deadline.** Ten individual *alegaciones* are worth more than your one.

If you do only the first three, you have preserved the record, put the project in the press, and left a trail others can pick up. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Sometimes the deck is genuinely stacked: an autonomous government politically committed to a project, a "public interest" or "strategic" designation (*declaración de interés público / utilidad pública*) that overrides local zoning, or an emergency/fast-track procedure (as with parts of the renewables build-out) that compresses timelines and thins assessment. Assessing the tilt honestly helps you choose the right tools.

What This Tilt DOES (and DOESN'T DO)

A tilt makes the *front door* — participation — less effective, and makes the *courts and media* more important. It does **not** remove the law. If anything, shortcuts create legal vulnerabilities: a fast-tracked EIA that skips a required step, a "strategic" declaration that ignores Natura 2000 duties, an alternatives analysis compressed to a formality, or a project split to dodge thresholds is exactly what an administrative court can annul. A rushed process is a process with mistakes in it — and in Spain, with its open standing, those mistakes are challengeable.

Reading Your Tilt: Clean, Moderate, Severe

- **Clean.** Normal procedure, a decision-maker with no strong stake, a genuine público-information period. Here, participation and documentation do real work, and the full five-step campaign is at its most effective (see the visualization in Section 3).
- **Moderate.** A region keen on the project, a developer-funded study, some political momentum. Participation still matters, but weight shifts toward procedural legal challenge and media.
- **Severe.** A "strategic"/public-interest project, a fast-track statute, developer-only studies, and a government publicly committed. Here, assume the administrative decision will go against you and prepare the **court case and the media campaign** as your main instruments — while still filing impeccable *alegaciones*, because they preserve the legal record.

Documented Spanish Dynamics

The renewables surge is the live example. Reforms accelerated environmental review for wind and solar, and in some cases narrowed public-participation rights, and rural communities across Aragón, Castilla y León, Galicia, Extremadura and elsewhere organised against projects they say were approved with thin assessment and no real consultation — some of those fights have gone to court on precisely these procedural grounds, and some have won annulments or forced redesigns. Macro-farm (*macrogranja*) fights follow a similar pattern. The lesson repeats: **when the process is rushed, the process itself becomes the target.**

Assessment Framework — Determine Your Situation

Ask, honestly: Is a fast-track or "public interest/strategic" procedure being used? Was a required assessment step skipped or compressed? Is the deciding government the project's public champion? Is the developer politically well-connected? The more "yes" answers, the more you should shift weight from participation to (a) a rigorous procedural legal challenge, prepared in advance and filed the day the decision drops, and (b) sustained media and political pressure that raises the cost of the shortcut and makes the tilt itself the story.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Some campaigns use lawful public demonstrations, marches, human chains, and visible community mobilisation, which are protected forms of assembly in Spain. Note that public gatherings have legal requirements — prior notice to the *Subdelegación del Gobierno* — and limits, and that Spain's public-security law (the so-called *ley mordaza*) has been used to fine some protest conduct. Know the law, stay lawful, prioritise safety, keep actions non-violent and well-stewarded, and get legal advice before any action that could carry legal risk. This guide describes that such tactics exist and are used; it does not advise breaking the law, and reminds you that the campaign's legal and moral credibility is an asset worth protecting.

Honest Assessment

Tilted fights are harder and some are lost. But "harder" is not "hopeless" — procedural rigour, the open courts, and durable public pressure have overturned tilted approvals in Spain, and even an ultimate loss often buys years of delay, a forced redesign, a legal precedent, and a community that is now organised and experienced. Decide with clear eyes, concentrate force where the tilt is weakest — the rules the administration must still follow — and remember that developers abandon projects that become slow, expensive, and politically toxic, whatever the paperwork says.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed.

Local councillors and the mayor (ayuntamiento). The most common pressure point: a small municipality can be financially dependent on one project's fees and taxes, or a councillor can have a personal or family tie to a developer. Signs: a sudden reclassification of land, a "public interest" declaration with thin reasoning, a rushed vote. Lever: the conflict-of-interest rule (Law 40/2015) — an official who should have abstained but voted can void the decision, a far lower bar than proving a bribe.

The regional environmental authority and its technical staff. Capture here is usually softer — political direction to approve, or a study written by a consultant paid by the developer. Signs: a technical report that contradicts obvious facts, or that reads as the developer's document. Lever: attack the assessment's adequacy (alternatives, cumulative impacts, Natura 2000) on the record and, if needed, in court.

The planning bureaucracy. Look for permits granted against the local plan, or enforcement that never comes for a favoured developer. Lever: the municipality's *disciplina urbanística* duty is not discretionary; the Ombudsman treats inaction as maladministration.

The developers. Watch for land quietly optioned before a project is public, shell companies, and revolving-door hires of former officials. This is where the money map from the evidence-gathering section is used. None of it is illegal by itself, but the timeline it reveals is what a journalist or prosecutor needs.

The courts. Spain's administrative judiciary is generally independent, which is why litigation is a genuine lever here. But be honest about the specific court and region: where a bench is slow, under-resourced, or unusually deferential to regional government, even a strong procedural argument may not win, or may not win in time to matter. If that is your read, do not bet everything on the court — weight the campaign toward participation, media, and political pressure, and use litigation mainly to delay and to force disclosure.

Regional and national politicians. Where a project is a political priority (an energy target, a flagship investment), expect the whole administrative chain to lean toward yes. This is not corruption, but it is capture of a kind, and it means the honest path is procedural rigour plus public pressure, not an appeal to the good faith of the decision-maker.

How to act on it, safely. Document from public sources before you say anything. Route serious allegations through lawyers and the proper bodies — the *Fiscalía* (or *Fiscalía Anticorrupción*), the regional anti-fraud offices, the *Tribunal de Cuentas* for public money — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps are not sequential silos — they run in parallel and reinforce each other over a campaign that typically spans a year or more. Here is how they fit onto one timeline.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — project, deciding bodies, the specific act to block, every deadline, the money map. - Constitute the *asociación* with clean, environment-focused statutes. - Begin baseline documentation (Step 2, Layer 1) — the "before" record, before ground is cleared. - Request the file and environmental data under Law 27/2006. - Start one-on-one organising (Step 3, Phase 1).

Months 2-3 (Launch). - File rigorous *alegaciones* in the público-information period — **the critical deadline** — and run mass-filing workshops (Step 4, Track 1). - Hold the community forum and launch media timed to the window (Steps 3 & 5). - Complete the impact critique with expert help (Step 2, Layer 2), and file it as part of the *alegaciones*.

Months 3-6 (Expansion). - Build the coalition; bring in national/regional groups with legal capacity (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Sustain media at each milestone; keep the story alive. - Prepare the legal strategy in advance so you can move the day a decision drops.

Months 6-12 (Pressure & Decision). - As the DIA and authorisation approach, escalate lawful public pressure (Step 3, Phase 4). - When a decision issues, **move fast**: read the notification, file the administrative appeal within one month if applicable, and prepare the *recurso contencioso-administrativo* within the two-month court deadline — with a *medida cautelar* (suspension) request if destruction is imminent (Step 4, Tracks 2-3).

Beyond 12 months. - Litigation can run one to three years or more, with possible appeal (*casación*). - If the project is approved and built, shift to **compliance monitoring and enforcement** (Step 4, Type 3) — many lawfully approved projects are unlawfully built. - Keep the coalition and the file alive; the experience and the association are assets for the next fight.

Warning Signs — Act Early

The público-information period is open (file now, do not wait); land is being quietly optioned or changing hands; a "strategic/public interest" or fast-track procedure is invoked; the developer is mobilising PR or lobbying; survey crews appear on the ground. Early action beats late reaction — the great majority of campaigns that lose did so because they engaged after a key deadline had already passed. The single highest-value thing you can do on day one is find and diarise every deadline.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the exact decision and deadline; constitute a proper association early to unlock court standing; build a rigorous, expert-backed, procedural-and-substantive evidence file; sustain a broad, non-caricaturable coalition and steady media; combine legal, political, and media pressure rather than relying on one; and hit every deadline. Losing campaigns: rely on sentiment over evidence; splinter internally; peak too early and burn out; treat the *alegaciones* as a formality; and — above all — miss the *alegaciones* or the two-month court deadline.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" takes several forms, and it is worth naming them so you recognise a win when you get one: - a **negative or heavily-conditioned DIA**, a **refused authorisation**, or a **court annulment** (often on procedural grounds) that sends the project back or kills it; - a **lapsed DIA**, a **developer withdrawal** after cost and delay mounted, or a project so **reshaped or relocated** that the worst harm is avoided.

Communities in Spain have achieved each of these — usually through the combination of a rigorous file, open-standing litigation, and sustained public pressure, not through any single lever.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone rather than only at the end. If a procedural ground is strong and the court deadline is

live, litigation may well be worth it. If a first legal round is lost but a genuine appeal ground exists, appeal. If every legal avenue is genuinely exhausted, redirect energy rather than burn out: to compliance monitoring, to the next decision point, or to the political arena — the next regional or municipal election, the revision of the PGOU, or the broader campaign against the project type. Continuing is not always right; neither is quitting at the first setback. The mark of a mature campaign is knowing the difference.

The Bottom Line

Spain's system leans toward "yes," but it hands communities two unusually strong tools: a mandatory EIA with a real public-information window, and broad access to the administrative courts for environmental associations. Communities that organise early, constitute a proper association, document rigorously, respect the deadlines, and combine legal, political, and media pressure have stopped, delayed, and reshaped destructive projects — and can again. No single step wins; the combination does. Start today by finding your deadlines and constituting your association — everything else builds on those two acts.